

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S REPLY IN SUPPORT
OF THEIR MOTION TO STRIKE DEPOSITION TESTIMONY**

(EDIS Doc. ID 887862) (Motion No. 1478-008)

[REDACTED]

Oura explained in its pending MSD that the Ring 5 [REDACTED] products should be adjudicated and found to be noninfringing products. EDIS Doc. ID 887851. Oura's Motion to Strike raises a separate question: If the Ring 5 [REDACTED] products are adjudicated, can Samsung rely on expert testimony it solicited at deposition that is beyond the scope of its experts' reports? Samsung's opposition, which reads like a misplaced motion to strike products from the case, improperly collapses these separate questions into a complaint about fair disclosure and a request for a second bite at the apple.

Samsung does not show that it is entitled to unilaterally supplement its experts' opinions through depositions, nor does it explain why its contentions or expert reports did not address Ring 5 [REDACTED] after Oura named them as noninfringing products. Samsung missed its opportunity to make the case for infringement against Ring 5 [REDACTED] long before its experts were deposed, and their belated testimony should be struck. Thus, Samsung is wrong that its experts may put forth new opinions through deposition testimony merely because they are "rebuttal" opinions, and it is wrong that their testimony is within the scope of their reports.

I. OURA'S RING 5 [REDACTED] ARE ELIGIBLE FOR ADJUDICATION

Samsung argues that Oura's Ring 5 [REDACTED] should not be adjudicated. (Opp. at 2-5). That does not bear on whether its experts' deposition testimony on them should be allowed, other than to say that if the rings are adjudicated, Samsung wants to present expert testimony on those rings at the hearing. But if Samsung had wanted to present expert testimony on those rings, it should have made infringement allegations in its contentions and it should have served expert reports on them. It did not.

But Samsung *could* have. For all of the reasons addressed in Oura's MSD (EDIS Doc. ID 887851) and Reply in support, Oura's Ring 5 [REDACTED] are eligible for adjudication. Oura produced over two hundred Ring 5 [REDACTED] technical documents beginning early in discovery,

[REDACTED]

with contentions of noninfringement served before Samsung's final contentions were due and torn-down products made available for inspection. See MSD at 2-9 (background section)). Oura's witnesses, *inter alia*, confirmed that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Furthermore, Oura told Samsung in its April 29, 2026, contentions that Ring 5 [REDACTED] should be adjudicated and do not infringe. *See* Ex. H.

Samsung received the message and acted on it during depositions: as just one example, it took testimony from Mr. Michael Larson on the Ring 5 [REDACTED] and Samsung's counsel even identified these products as accused products during that deposition. *See* Ex. 6. Samsung (Opp. at 3) blames lay deponents for not identifying them as "redesign[s]...in response to Samsung's asserted patents" but of course, [REDACTED]

[REDACTED] Thus, Samsung is wrong that Ring 5 [REDACTED] are not eligible for adjudication and wrong that it did not think it needed to address them in its infringement contentions and expert reports.

Samsung now contends that it was specific noninfringement theories advanced by Dr. Mortazavi in his expert report, rather than product discovery, that came too late. But because of the burden-shifting framework applicable to redesigned and alternative products, the "ball" was

never in Oura's "court" to detail these theories in its non-burden responsive contentions. Specifically, noninfringement contentions are not required from a respondent before it receives the complainant's infringement contentions—which Samsung did not serve. The only initial burden Oura had was to identify the redesigned/alternative product and provide sufficient discovery to enable Samsung to make infringement contentions. *See, e.g., Certain Audio Players and Controllers*, Inv. No. 337-TA-1191, Order No. 19 at 2-4 (Sept. 17, 2020) ("*Certain Audio Players*") (adjudicating products that had been disclosed without noninfringement contentions); *Certain Electrical Connectors and Cages*, Inv. No. 337-TA-1241, ID at 38 (March 11, 2022) (focusing on the timing of the identification of products and their features, without any requirement for contentions of noninfringement). While parties may include noninfringement contentions with their identification of redesigned/alternative products—and Oura provided preliminary contentions, noting "at least" for the reasons cited therein there was no infringement (Ex. H at 79)—it had no obligation to predict and rebut Samsung's infringement arguments that Samsung had not made and never did. It is only after infringement contentions have been made that a respondent must respond. *See* Order No. 8 (Amended Procedural Schedule) (EDIS Doc. ID 881268) (expert reports for party with the burden of proof on an issue are served first, with the same order for contention interrogatory responses).

Samsung flips this burden, insisting that it should be able to review and respond to Oura's rebuttal noninfringement expert report before serving an infringement expert report on these products. *See* Opp. at 4. The authority runs contrary. *See Aktiebolaget Varsos v. Clark*, 8 F.R.D. 635, 636 (D.D.C. 1949) ("A litigant may not compel his adversary to go to work for him."). Indeed, this exact argument was rejected in *Certain Audio Players*, where sufficient disclosure of redesigned products was found to have occurred despite complainant's argument that "the

redesigns have not been sufficiently disclosed because [respondent] has not provided a response to Interrogatory No. 21 as to how the alleged redesigns are non-infringing.” Order No. 19 at 2-4; *see also Certain Human Milk Oligosaccharides & Methods of Producing the Same*, Inv. No. 337-TA-1120, Comm’n Op. at 23 (June 8, 2020) (EDIS Doc. ID 712205) (it is the complainant’s burden to prove infringement). By neglecting its burden to put forth infringement contentions and disrupting the burden-shifting framework, Samsung created the prejudice it now claims.

Even if Dr. Mortazavi’s noninfringement opinions were out of scope of Oura’s contentions (which they are not, at least because Samsung never pursued infringement on these products), the more appropriate remedy would be to strike those opinions rather than allow Samsung to make new infringement contentions on the final day of expert discovery through redirect deposition testimony. Regardless, Dr. Mortazavi’s opinions do not need to be decided now: Samsung has not moved for exclusion, and its experts’ testimony is independently improper.

II. UNPROMPTED NEW OPINIONS AT DEPOSITION ARE NOT PERMITTED

As shown above, Oura’s timely and proper disclosure of the Ring 5 [REDACTED] products holds Samsung to the rules that expert testimony must be supported by contentions and contained in expert reports. G.R. 13.6.6; G.R. 9 (“The report shall contain a complete statement of all opinions to be expressed by such person and the basis and reasons for the opinions....”); *Certain Infotainment Systems, Components Thereof, & Automobiles Containing the Same*, Inv. No. 337-TA-1119, Order No. 34 at 3 (May 29, 2019) (EDIS Doc. ID 678334). Samsung has not identified an investigation that excused a complainant from these foundational procedures, nor has it claimed an extreme justification here.

Deposition testimony should not be a loophole, especially not deposition testimony elicited by the party who retained the expert. As detailed in Oura’s Motion, those ALJs to have considered redirect deposition testimony that exceed the scope of expert reports and were not in response to

questions from the opposing party's counsel have uniformly struck or precluded it. *See* Mot. at 8 (citing cases). Samsung does not even acknowledge these cases, let alone rebut them. Instead, Samsung dredges for authority that addresses a party's motion for leave to supplement expert discovery to address unexpected or unfair positions by a respondent. *See* Opp. at 6-7. Not only did Samsung not seek leave as soon as it received Oura's expert's opinions on Ring 5 (which would have been anyway improper due to the traditional burden framework), none of the cases Samsung cites allows a party to expand its expert's opinions through a deposition loophole.

In *Certain Formatted Magnetic Data Storage Tapes*, respondents sought leave to file a supplemental expert report in view of new opinions concerning secondary considerations of non-obviousness that were set forth for the first time in the rebuttal expert report of complainant's expert. Inv. No. 337-TA-931, Order No. 16 at 3-5 (Apr. 29, 2015). But crucially, the issue being disputed was which party bore the burden of going "first" on secondary considerations, and the ALJ agreed that respondents had a right to respond to complainants, who had the initial burden to show them. *Id.*; *see also Sealy Tech., LLC v. SSB Mfg. Co.*, 825 Fed. Appx. 801, 807 (Fed. Cir. 2020) ("It is the patentee's burden of production to demonstrate a nexus between the claimed design and the secondary considerations."). But here, given that Samsung bore the burden to go "first" under the framework for infringement, this reasoning does not apply. This is reinforced by the consistent practice of ALJs upholding adjudication of redesigned products introduced after infringement contentions are due. *See, e.g., Certain Audio Players*, Order No. 19 at 2-4 (adjudicating products that had been disclosed without noninfringement contentions).

In *Certain Network Devices, Related Software and Components Thereof (II)*, the complainant had already set forth infringement theories when the respondent improperly served new, untimely noninfringement theories. Inv. No. 337-TA-945, Order No. 43 at 12 (Nov. 3, 2015).

The complainant demonstrated that it could not have anticipated the new noninfringement theories and successfully sought leave to serve a supplemental infringement report within the existing procedural schedule. *Id.* But Samsung did not provide infringement theories that Oura could have rebutted, and Samsung had notice during fact and expert discovery that Oura contended Ring 5 [REDACTED] were noninfringing. Samsung's failure to provide any evidence that carries its burden to show infringement under any theory makes Dr. Mortazavi's disclosures superfluous and Samsung's reliance on them to justify "rebuttal" testimony irrelevant. *See* MSD at 26-27.

And in *Certain Mobile Telephones, Tablet Computers With Cellular Connectivity, and Smart Watches with Cellular Connectivity*, the complainant's motion for leave relied on discovery that respondents had withheld despite specific requests by complainants. *See* Inv. No. 337-TA-1299, Order No. 24 at 2, 5 (Nov. 29, 2022). Here, Oura produced documents, source code, and physical samples, all without any request from Samsung for more.

Samsung did not seek to serve any expert report but rather unilaterally prompted its experts to set forth infringement theories and opinions for the first time in redirect deposition testimony. This is plainly improper under Ground Rule 9. It also prejudices Oura by ambushing it with new infringement theories that were not disclosed in time for Oura's expert rebuttal or for meaningful examination at deposition. For example, Samsung alleges (Opp. at 7) that Dr. Welch merely opines that "[REDACTED]" but that is not a position Samsung made before, and it certainly did not show any support in time for Dr. Mortazavi to consider any rebuttals.

III. EXPERTS' TESTIMONY COMPRISES NEW INFRINGEMENT OPINIONS

Samsung alternatively argues that its experts' testimony merely presented the same theories they had presented in their report, just extended to materially similar products. This is not true.

A. Samsung's Experts Set Forth New Opinions

Samsung does not dispute that its contentions do not allege infringement against Ring 5

██████████ nor does it dispute that its experts' reports do not provide opinions on Ring 5 ██████████. But Samsung now contends that the same reasoning lodged against Ring 4 (which was disclosed) ██████████. Opp. at 7-8. Samsung provides no reason to depart from the established procedure that, absent party agreement, products are adjudicated on a product-by-product basis, and if a patentee wishes to make an argument of representativeness, this is an expert opinion that must be supported by evidence concerning the represented products. *See, e.g., Certain High-Strength Aluminum or Aluminum Alloy-Coated Steel, & Automotive Products & Automobiles Containing Same*, Inv. No. 337-TA-1402, Order 29 at 3 (Feb. 27, 2025) (EDIS Doc. ID 845117) (complainant "bears the burden to establish....that any 'products identified as representative are, in fact, representative of the other products.'" (citations omitted)). Samsung's experts at deposition addressed products that they did not address in their expert reports, using evidence that they did not address in their expert reports. *See* Opp. at 7-8. These are new opinions.

B. Oura Never Took the Position that Ring 5 ██████████ were the Same as Ring 4

Samsung finally argues that "[t]here is no prejudice to Oura in permitting Dr. Welch [and Dr. Warren] to opine that Oura's products rise and fall together for infringement," given ██████████ ██████████ Opp. at 7-9. This allegation is not an accurate representation of the record. Oura never represented ██████████ ██████████ as Oura's Gen. 4 ring. Rather, the statement that Samsung seems to cling to is Oura's preliminary allegation that the Ring 5 ██████████ "do not directly infringe, induce infringement of, or contribute to the infringement of the '359 Patent, the '677 Patent, the '675 Patent, and the '789 Patent for at least the same reasons as set forth in Oura's First Supplemental Response to Interrogatory No. 7." Ex. H at 79. But an argument that "at least" the same noninfringement arguments would apply does not say that no other arguments would apply, and is also not the same as saying that the products are materially the same.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Oura has never taken the position that the products were “materially the same” for purposes of infringement, and by setting forth the preliminary argument that “at least” the same noninfringement bases would exist, Oura did not preclude other bases or concede representativeness. [REDACTED]

[REDACTED]

[REDACTED] Finally, Dr. Mortazavi’s report—submitted after Samsung should have (but did not) disclose its experts’ theories of infringement—had no opinion from Samsung or its experts to rebut, [REDACTED]

[REDACTED]

[REDACTED]. Had Samsung properly presented infringement contentions and expert opinions, he may have expended additional effort, and his opinions may have been more precise. But that remains a

counterfactual.

IV. OURA'S MOTION TO STRIKE IS PROCEDURALLY PROPER

Samsung also argues that Oura's Motion should have been brought as a "discovery dispute." Opp. at 2 n. 3. But Oura's motion does not seek any discovery nor does it have any bearing on the long-concluded discovery process (*i.e.*, the testimony will either be struck or it will not be struck), and thus this motion to strike is not a discovery motion—just as a motion *in limine* is not a discovery motion, even if it might seek to strike evidence provided during discovery.¹

Further, this motion was a near-immediate response to Samsung's improper deposition conduct, filed two business days after that testimony was provided. Oura also filed it to coincide with the deadline for summary determination motions, which, as set out above, has consequences for this motion. In the parties' meet and confer, Samsung did not object to this procedure.

If the ALJ disagrees with this procedural posture, Oura represents that its misunderstanding was in good faith and contends that good cause exists to permit the current motion to be adjudicated on the merits, especially given the co-pending summary determination motions.

V. CONCLUSION

For the reasons set forth herein and in Oura's initial Motion, Oura respectfully requests that the deposition testimony of Dr. Warren at Ex. A at 35:14-15, 41:5-10, 137:7-9,² 200:10-215:2 and by Dr. Welch at Ex. B at 186:15-18 and Ex. C at 379:17-386:2 be struck, and Samsung be precluded from relying on such statements at the evidentiary hearing.

¹ The motion to strike evidence of redesigned products considered in Inv. No. 337-TA-1468 was different at least because its outcome would affect the scope of expert discovery and possibly affect the fact discovery timeline. *See Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1468, Order No. 17 (Apr. 30, 2026) (EDIS Doc. ID 881886).

² This citation was erroneously set forth as 135:7-9 in Oura's Motion, and was corrected the next day in Oura's unopposed notice of typographical error and correction. *See* EDIS Doc. ID 888013.

Dated: July 28, 2026

Respectfully submitted,

s/ Jasjit S. Vidwan

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Exhibit O

REDACTED IN ITS ENTIRETY

Exhibit P

Jas Vidwan

From: Tiffany A. Miller
Sent: Wednesday, February 11, 2026 5:09 PM
To: #OMM-SAMSUNG-OURA; z/Reebok_ITC_1468; ZeppHealthITC1468
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS
Subject: ITC Inv. No. 337-TA-1468 - Source Code Review and Availability

Counsel,

Now that the Parties have moved to enter the supplement to the protective order with respect to source code, please let us know whether Respondents' source code and firmware is ready for inspection. Please also let us know where the source code laptops will be made available for inspection.

Oura's source code for Domestic Industry Product is ready for inspection in Mayer Brown's Washington D.C. office. Oura's source code computer is running the Windows 11 operating system. The following programs for analyzing source code are also installed on the source code computer: Notepad++, Powergrep, ExamDiff Pro, Cygwin, and Adobe Acrobat Reader. Please let us know if there are any additional software that Respondents want installed on the source code computer.

Regards,
Tiffany

Tiffany A. Miller

Partner

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Exhibit Q

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March 17, 2026

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Re: In re *Certain Smart Wearable Devices, Systems, and Components Thereof*, ITC Inv. No.
337-TA-1468 – Oura Document Production

Dear Counsel:

At the following links, please find Complainant Ouraring Inc.'s ("Oura") document productions consisting of documents bearing bates numbers OURA1468_00254513 - OURA1468_00255562 (OURA1468_V007) and OURA1468_00255563 - OURA1468_00255591 (OURA1468_V008):

https://ftpus.consilio.com/public/file/d8yj8f-4j0whx_tr7spwha/OURA1468_V007.zip

https://ftpus.consilio.com/public/file/13ar4p98le-8-xr6smsi2a/OURA1468_V008.zip

A password will be sent separately for the links and production files. Please note that certain documents within the production have been designated CONFIDENTIAL BUSINESS INFORMATION – SUBJECT TO PROTECTIVE ORDER and should be treated accordingly under the agreed upon Protective Order.

March 17, 2026

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Please let us know if you have any issues accessing Oura's productions.

Sincerely,

A handwritten signature in black ink, appearing to read 'Tiffany A. Miller', enclosed within a thin black rectangular border.

Tiffany A. Miller

cc: Counsel of Record

Exhibits R

REDACTED IN ITS ENTIRETY

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS OURARING INC. AND OURA HEALTH OY'S REPLY IN SUPPORT OF THEIR MOTION TO STRIKE DEPOSITION TESTIMONY (EDIS DOC. ID 887862) (MOTION NO. 1478-008)** was served upon the following as indicated below on August 5, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

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